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DECISION DAYS BEFORE ACT WAS TO TAKE EFFECT

Trump waives sanctions, tariffs linked to Russia, cites national interest

Law gave Trump power to slap 100% tariffs on countries buying Russian oil; India, China had raised concerns

Alan Rappeport
Washington, October 17

PRESIDENT DONALD Trump signed an executive order Friday night exempting Russia from a new sanctions measure that Congress passed last month, offering another economic lifeline to Russian President Vladimir Putin as the United States turns to Russia for help in lowering gas prices.

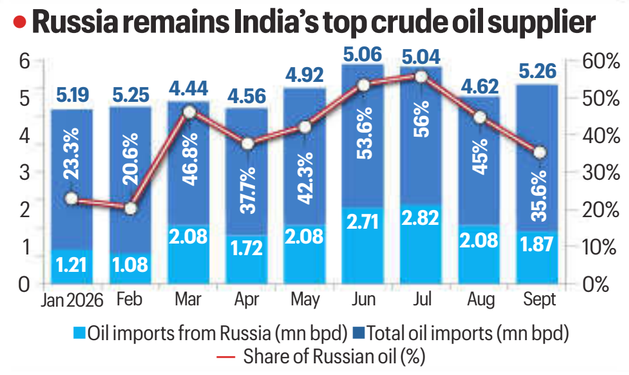
The sanctions were intended to target Russian officials, oligarchs and financial institutions, and were part of a law that was named after Sen. Lindsey Graham, R-S.C., who died in July after spending more than a year building support for the measure.

The law, which is designed to squeeze the financial lifelines sustaining Russia's war against Ukraine, also provided Trump with additional tariff authority that he could use to punish countries that continue to trade with Russia.

The White House has broad authority to issue sanctions

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Russia remains India's top crude oil supplier



SC: Internet access fundamental right, blanket curbs on children no answer

'To keep child away from Internet would be to mistake the victim for the problem'

Ananthakrishnan G
New Delhi, October 17

IN A significant order, the Supreme Court has said that the right to access and use the Internet is a fundamental right of every individual under Article 21 read with Article 19(1)(a) of the Constitution.

Ruling on a petition by NGO Just Rights for Children Alliance, which sought its intervention to prevent the availability of Child Sexual Exploitation and Abuse Material (CSEAM) on social media platforms, a Bench of Justices J B Pardiwala and K Vinod Chandran said in its October 15 order that a blanket restriction on children accessing the Internet is not the solution.

Calling the right to use the



Supreme Court judges Justice J B Pardiwala (left) and Justice K Vinod Chandran

Internet a fundamental right, the order which was made available Saturday said, "Our children, irrespective of their age, enjoy the same rights, and to deny the same altogether would be as absurd as saying children below a certain age do not have a conscience worth protecting or a freedom of

»CONTINUED ON PAGE 2

Internet

speech worth expressing. The safety of our children and their freedom are not at odds with each other."

The ruling pointed out that in its January 10, 2020, judgment in Anuradha Bhasin vs Union of India, the Court "held that the freedom of speech and expression and the freedom to carry on any trade or business through the medium of the Internet is constitutionally protected as a fundamental right under Article 19(1)(a) and 19(1)(g) of the Constitution". While the judgment "refrained from expressing any view on whether the right to access the Internet is, by itself, a fundamental right and left the question of law open for future discourse", the Court said, "yet, this issue is no longer res-integra (untouched)".

Justices Pardiwala and Chandran pointed to the April 2025 decision in Pragya Prasun & Ors. v. Union of India, where the Supreme Court held that the "right to digital access is an intrinsic component of the right to life under Article 21 of the Constitution, and that it is the obligation of the State to proactively design and implement inclusive digital ecosystems that serve not only the privileged but also the marginalised".

Underlining the importance of the Internet as "the marketplace of ideas, creative expression and information", and its usefulness for particularly children in remote areas and those with special needs, the Court said: "... insofar as CSEAM is concerned, the wrongdoer is the person who creates, circulates, sells or seeks out such material, and the intermediary which fails to detect and remove the same. To keep the child away from the Internet on account of such failures would be to mistake the victim for the problem."

It added: "The means by which measures relating to age-based restrictions are achieved are themselves an overreach. Such processes, inevitably, always require identifying and ascertaining the age of each and every user, continuous collection and monitoring of sensitive data and an overall disproportionate risk of misuse and surveillance." However, the Court said, "this does not mean that there should be no age-based restrictions". "We acknowledge that some form of safeguards are necessary for the safety of our children online and the moderation of the content...."

It suggested "a system that places greater emphasis on parental consent, guidance and oversight on the access to social media platforms by children along with a dedicated 'child mode' for such accounts with measures proportionate to the object of ensuring their safety".

The Bench also pointed out that the experience of other jurisdictions shows that "children do not cease to use the Internet merely because the law prohibits them from doing so. They continue to use the same, albeit without the knowledge of their parents or the authorities. They move to other platforms and websites that are unregulated and even more unsafe."

It said "such restrictions also make children who are being enticed or threatened on the Internet reluctant in reporting the same... out of fear of reprisal for using the Internet". "This would significantly undermine the safety of our children."

The Bench also said that keeping children away from social media platforms was no guarantee that they would not be exposed to CSEAM and similar material.

On safety measures that may be put in place, the Court suggested "accounts being made private by default, restrictions on contacts and messages from unknown adults, moderation of advertising and content accessible to children". Their safety "is not complete without adequate efforts towards inculcating in them the awareness to recognise danger, the confidence to speak up and the safe practices to follow, on and off the Internet", the Court said.

Trump

exemptions or waivers, and the new law requires Trump to notify Congress only if he opts against imposing the economic restrictions on Russia. Two days before the law was set to take effect, Trump exercised that power.

"I am hereby waiving the application of such sanctions, restrictions and duties provided for in the Graham Act," Trump said in the order. "I have submitted to the Congress a certification that the issuance of such a waiver at this time is in the national interests of the United States."

The order does not explain why waiving the sanctions is in the interests of the United States or what rationale Trump is providing to Congress for the waivers.

The decision comes as Trump has in recent weeks embraced Russia and turned against Ukraine amid frustration that Ukraine's attacks on Russian refineries are pushing up oil prices around the world. Elevated oil prices are making gasoline more expensive in the United States, fueling inflation weeks ahead of midterm elections that could cost Republicans control of Congress.

Trump announced last week that he had reached a deal with Putin, and that the United States would begin importing Russian diesel fuel. The Treasury Department temporarily lifted sanctions on Russian diesel exports "to allow the supply of Russian diesel to the global market," and gave Russian energy producers a general license to sell diesel fuel until April.

That decision angered President Volodymyr Zelenskyy of Ukraine, and drew backlash from European officials. This week, a bipartisan group of senators urged Trump to reverse the sanctions waiver on diesel fuel.

The move to waive the sanctions that were enacted in the new law drew a swift rebuke from critics in Congress, who had predicted that Trump would not impose them.

"Trump's latest surrender to Putin again betrays our Ukrainian partners and defies clear congressional intent of legislation designed to punish Russia for its illegal war of aggression," said Rep. Don Beyer, D-Va.

Sen. Elizabeth Warren, D-Mass., the ranking member on the Banking Committee, called Trump's move an "abject failure" of leadership. "By waiving these sanctions, Trump is thumbing his nose at Congress' direction that he ratchet up pressure on the Kremlin, and enabling Vladimir Putin to continue his war of aggression," Warren said.

The sanctions law was the brainchild of Graham, a Russia hawk and close ally of Trump's. The legislation, which was set to take effect on October 18, won bipartisan support despite concern that the President would not heed the sanctions requirements, and that he would potentially misuse the tariff authority.

The law gave Trump the power to target countries importing Russian oil and gas with up to 100% tariffs, subject all Russian imports to the United States to up to 500% tariffs, and take greater aim at Russia's "shadow fleet" of oil tankers and banking system.

(*Reuters* adds: Countries such as China and India, which are among the biggest buyers of Russian oil, had raised concerns. Beijing had said it "consistently opposed long-arm jurisdiction that lacks a basis in international law" while India warned Washington that new tariffs could impact bilateral ties.)

In the executive order, Trump said that the United States would "monitor" the purchases of Russian oil by other countries and that his advisers would recommend whether to take further action on tariffs.

It is not clear if waiving some of the sanctions means that Russia will be welcomed back into the Western financial system after years of being an outcast.

"The underlying sanctions architecture remains in place, and no one wants to be caught holding the risk when the waiver is pulled," said Daniel Tannebaum, a partner at Oliver Wyman, a consulting firm that advises banks on anti-money laundering and sanctions matters. "I'm not sure what positive impact to the American economy will be derived in reality." NYT

RANKS WERE MERGED WITH THOSE OF CONSTABLE AND HEAD CONSTABLE IN 1997

CRPF plans to reintroduce Lance Naik and Naik ranks

Lower formations of the force asked to elicit the views of stakeholders

Express News Service
New Delhi, October 17

THE CENTRAL Reserve Police Force (CRPF), the country's largest paramilitary force, is planning to reintroduce the ranks of Lance Naik and Naik, nearly three decades after the two posts were merged with those of Constable and Head Constable, respectively.

The Lance Naik and Naik ranks, abolished in the CRPF in 1997 through a Ministry of Home Affairs (MHA) order, are still operational in the Army.

In a communication, the force has asked its lower formations to elicit the views of stakeholders by holding special sainik sammelans or meetings on the proposal, with an objective to widen the promotional avenue available to constables.

"After receiving suggestions from the ground level, all will be consolidated at the sector level and forwarded to the headquarters by October 18 for onward submission to the competent authority," an official said.

According to the hierarchy, a jawan who joins the force as a constable gains the first promotion to Lance Naik in five years, followed by the promotion to Naik in 10 years and subsequently Head Constable in 20 years.

Currently, the about 3.25 lakh personnel-strong CRPF is facing acute stagnation in promotions in these ranks, as a constable gets his first promotion in 22-25 years on average.

This stagnation in one rank has led to grievances among the jawans. "The aim of reintroducing the Lance Naik and Naik ranks is to provide two more promotions to the constabulary before they reach the head constable rank, which will not only help address their grievances but also boost their morale," an official said.

The move is also understood to be aimed at making the CRPF service attractive for the Agniveers from the Army, whose first batch will retire this year and will be eligible to join the Central Armed Police Forces (CAPFs), including the CRPF, the officials said.

Agniveers are short-term military personnel recruited into the three forces for four years under the Centre's Agnipath scheme. Currently, the CAPFs have an ad hoc arrangement of granting a non-sanctioned senior constable rank insignia on the uniform of constables, making them equivalent to the Lance Naik rank. There is no arrangement for the Naik rank at present.

Govt caps trade margins on 137 anti-cancer drugs at 30%

Revised prices shall come into effect from November 9, says gazette notification; manufacturers asked to submit revised MRP to pricing authority within seven days

Anonna Dutt
New Delhi, October 17

THE GOVERNMENT has capped the trade margins on 137 cancer medicines, including several patented drugs such as pembrolizumab, ribociclib and abemaciclib, at 30% over the cost at the first point of sale, either the stockist or the hospital, when it is directly sold to them.

The manufacturers of the medicines have been asked to submit the revised MRP to the National Pharmaceutical Pricing Authority (NPPA) within seven days.

"The revised prices shall come into effect from 09.11.2026 and shall remain in force until further orders," said the gazette notification issued on Saturday.

The medicines included in the list have been selected to ensure affordability of drugs that can be considered to be essential for the treatment of cancer patients by an expert committee under the Director General of Health Services.

An analysis of market data by experts at a recent NPPA meeting found that non-scheduled anti-cancer drugs carry an average trade mark-up of 170%, with mark-ups going up to 700% in certain cases.

At present, the annual turnover of cancer drugs is around Rs 12,500 crore. Of this, scheduled cancer drugs, whose prices are regulated, account for only around Rs 2,250 crore.

Addressing these huge mark-ups on non-scheduled drugs, the experts at the NPPA meeting said it is expected to reduce MRP broadly in the range of 20–70%, resulting in annual savings of approximately Rs 2,500 crore. The 2019 exercise resulted in substantial reductions in MRP of up to 91%, with annual savings of approximately Rs 984 crore, according to the minutes of the NPPA meeting.

Additional GST will apply to the newly calculated MRP by the manufacturer. "The Authority considered it necessary to cap the trade margin at 30% of MRP, excluding GST, corresponding to a mark-up of 42.86% on the price to Stockist/Price to Distributor (PTS/PTD) to retain a reasonable trade margin while preventing excessive mark-ups, according to the minutes of the meetings of the pricing control authority on October 16 and 17.

Importantly, where the current MRP is lower than the MRP calculated after trade margin rationalisation, the lower MRP will have to be maintained. "All the existing manufacturers of formulations having MRP lower than the MRP so computed ... shall maintain their existing MRP," the notification said.

Any manufacturer not complying with the provisions of this order shall be liable to deposit the overcharged amount along with interest.

The notification also addresses another concern — supplies being interrupted as lower prices come into effect. It says: "The manufacturers of the formulations are required to maintain the present production levels. Any manufacturer intending to lower the average monthly production levels will seek prior permission from NPPA. Further, any manufacturer intending to discontinue production of the above-said formulations shall furnish information to NPPA."

The notification states that the MRP will be calculated based on a similar formula used during the 2019 pilot to bring down the prices of 42 cancer medicines.

The formula that the manufacturers have to use: MRP of the product = Price to Stockist or Price to Distributor x {1 + (Trade Margin/(100 − Trade Margin))} + Applicable GST.

What this essentially means is that if a drug is sold to the stockist at Rs 70, the MRP excluding GST would stand at Rs 100. The price to the stockist would be calculated as the net sales of a drug by a manufacturer divided by the quantity of the drug sold.

This calculation of the base price to the stockist will not include the drugs that are given to patients by the companies under the patient assistance programmes, as long as the drugs are given for free. However, to claim this exemption given under the patient assistance programmes — which are run by several big pharma companies manufacturing patented drugs — the companies have to furnish details of the patients.

FOR INDIA, WAIVER REDUCES THE RISK OF BEING PENALISED FOR BUYING RUSSIAN OIL

Relief for India's oil imports, but Washington still holds the cards

Sukalp Sharma
New Delhi, October 17

AFTER LIFTING sanctions on Russian diesel exports, US President Donald Trump has now signed an executive order waiving key provisions of a new law that authorised tariffs of up to 100% on top buyers of Russian energy.

The Lindsey O Graham Sanctioning Russia and Iran Act of 2026 — signed into law by Trump last month — was aimed at increasing pressure on Russia over the Ukraine war by penalising countries that bought Russian energy in large volumes.

The legislation became a worry for India, as Russian oil remains an important and major component of its oil import slate. New Delhi has made its concerns about the new law known to Washington on multiple occasions.

According to experts and analysts, the presidential power to waive the application of the law's provisions was expected to come into play, given the prevailing global energy supply and price scenario. India, too, was banking on it.

The waiver comes ahead of the midterm elections in the US next month, and will remain in place until the Trump administration determines that "further action is appropriate". Had the new law taken effect and led to a major reduction in Russian crude flows, already elevated energy prices would have risen further, including in the US, potentially hitting the Republican Party's prospects.

For India, this waiver reduces the risk of being penalised for buying Russian oil, at least for the time being. But it does not mean Washington can't or won't pressure New Delhi on the issue in the future as well.



The waiver comes ahead of the midterm elections in the US next month. REUTERS

Why Russian oil matters

India is the world's third-largest consumer of crude oil and depends on imports to meet over 88% of its needs. Russia is India's largest supplier. In September, India imported 1.9 million barrels per day (bpd) of Russian crude and it accounted for over 35% of the country's total oil imports for the month, according to data from commodity market analytics firm Kpler.

In the preceding months, the import volumes from Russia were even higher, with an all-time-high of 2.8 million bpd in July. Russian oil proved to be a strong energy security hedge amid the West Asia crisis, as oil flows from the Gulf dried up.

What the waiver changes for India

The most immediate benefit is that the threat of additional tariffs under the new law has been suspended. For India, the danger was that buying Russian oil could trigger punitive action against its exports to the US, particularly at a sensitive time in the bilateral relationship, and with the bilateral trade pact negotiations at a crucial juncture. The waiver issued by Trump removes that immediate dilemma, although only for as long as the suspension remains in force.

It gives Indian refiners greater room to assess Russian cargoes on the basis of price, availability and logistics rather than the additional tariff threat. It also makes long-term oil procurement planning less uncertain. Moreover, the real gain for India is flexibility.

New Delhi can continue weighing the commercial benefits of Russian crude against the risks of relying on a supplier whose trade is increasingly entangled in geopolitical conflict.

The decision should not be interpreted as a US guarantee for India to buy unlimited quantities of Russian oil. The White House order specifically requires American officials to monitor Russian energy purchases and report circumstances that might warrant further action. Existing sanctions imposed under separate executive orders also remain unaffected.

Put simply, Washington has retained the ability to change course on the issue.

The Trump administration has targeted India time and again over the country's hefty purchases of Russian oil. For over a year now, Washington has tried to strong-arm New Delhi into pivoting away from Russian crude. The Trump administration's argument has been that by buying Russian oil, India has been funding Russia's war in Ukraine.

What should India do

Washington's latest moves on Russian diesel and oil exports clearly shows that for the Trump administration, immediate domestic political and economic pressures take precedence over most other things, including policies that were claimed to be principled and grounded in morality. What the US will do once those domestic pressures ease is anybody's guess.

Therefore, India should treat the waiver as an opportunity to strengthen its energy security and keep up diversification efforts, rather than becoming more dependent on Russia. New Delhi should also continue engaging Washington to seek greater clarity and predictability over the treatment of Indian energy purchases.

Caller name display from Nov 1: How will it work, can you opt out?

A good call

- The service would only be available to users who are at least on a 4G network
- Subscribers who have enabled Calling Line Identification Restriction (CLIR) will also be exempt from the system
- Telcos have been told to follow a "security-by-design approach," by not allowing for retention of calling name identity after a call is completed



Soumyarendra Barik
New Delhi, October 17

Starting November 1, telecom operators like Airtel, Jio, and Vodafone Idea, will have to make caller name identification mandatory for mobile users, according to a circular issued by the Department of Telecommunications (DoT).

What this would essentially entail is that when a user receives a phone call, the other person's name will also be visible to them. Technically called Caller Name Presentation (CNAP), the move is being seen as a push towards helping users get better clarity before responding to a phone call, and comes amid widespread instances of online frauds, such as digital arrests.

"At the time when a call is incoming, calling name presentation service presents the calling name identity of the calling user on the user terminal of the called user. Calling name identity is the name of the calling user as recorded in subscriber data record of the originating telecommunication service provider and such identity is included in the calling line identification of such user," the DoT said in its circular.

The service would only be available to users who are at least on a 4G network, as the department said the rollout for 2G and 3G networks, as well as landline connections, will be considered separately.

How will the new caller ID service work?

The telecom operator on whose network the call is originating from will provide the calling name presentation service without the requirement of any separate request from a user. The call identification will have two fields: the first field shall contain the telecommunication identifier assigned to the calling user by the originating telco (read phone number), as per existing practice, and the second field shall contain the name of the calling user.

In case a user receives a call from a number they have already saved, that name will show up during a call. Where a number is not saved, the name of the user as registered in the database will be shown in case it's a domestic call, and "international call," when it originates from abroad.

Keeping in view users' privacy the DoT has asked telcos to follow a "security-by-design approach," by not allowing for retention of calling name identity after a call is completed. Subscribers who have enabled Calling Line Identification Restriction (CLIR) will also be exempt from the system. Their names will not be listed in CNAP. It further urged telcos to ensure that the database, network and connectivity infrastructure.

Businesses and bulk numbers

Users who hold business connections or bulk connections can avail a facility of having a name of their choice, different from the one found in the operator's subscriber database for display purposes.

The preferred name of the user shall be either a trade mark registered in their name as per the records of the Trade Marks Registry under the Controller General of Patents, Designs and Trade Marks, Department for Promotion of Industry and Internal Trade, or a trade name of the user as registered on the Goods and Services Tax portal.

While assigning a preferred name to a user, the telcos will have to undertake due diligence and make and maintain with it a true copy of documents showing proof that the user is registered under such name.